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53.	Rubicon Builders & Development, Inc. v. McCann 2025-0150778	Plaintiff Rubicon Builders & Development, Inc.'s unopposed motion to compel arbitration and stay proceedings is GRANTED. (Code Civ. Proc. §§ 1281.2 and 1281.4.) In light of the Court's ruling on Rubicon's motion to compel arbitration in the related matter McCann v. Rubicon Builders & Development, Inc. (OCSC Case No. 30-2025-01488820), Plaintiff and Defendant in this matter are hereby ORDERED to submit the claims alleged here to binding arbitration consistent with the Construction Services Agreement attached to Plaintiff's motion as Exhibit A, as modified in the ruling compelling arbitration in the related case. The Court excepts from this order to arbitrate Plaintiff's claims concerning a mechanic's lien. As it relates to Plaintiff's claims concerning the mechanic's lien, those claims are STAYED pending the conclusion of the arbitration, or further order of this Court. A Status Conference RE Binding Arbitration is set for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to file a joint status conference statement. The case management conference is VACATED. Plaintiff shall provide notice of this ruling.
54.	Cacak v. HB Healthcare Associates LLC 2025-01454745	Defendants HB Healthcare Associates LLC (HB Healthcare) and Sandpiper Senior Living LLC's (Sandpiper) (together, the Sea Cliff defendants) motion to compel arbitration is DENIED. (See Code Civ. Proc., § 1281.2.) <u>Subject arbitration agreements.</u> This motion has been brought pursuant to two separate arbitration agreements: (1) HB Healthcare's arbitration agreement with plaintiff Harold L. Cacak (plaintiff) dated 6/15/23, which the parties refer to as the "Sea Cliff SNF Agreement" (Apolinar Decl. at Ex. A); and (2) Sandpiper's arbitration agreement with plaintiff dated 8/1/23, which the parties refer to as the "Sea Cliff RCFE Agreement" (Clark Decl. at Ex. B). Although the Sea Cliff defendants have brought this motion together, each defendant seeks to compel arbitration pursuant to its own arbitration agreement with plaintiff. <u>The California Arbitration Act applies.</u> Defendants have brought this motion pursuant to both the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA). (See Mtn.

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		P&As at p. 3.) The CAA governs this motion as nothing in the moving papers or the subject agreements show the FAA applies. (See <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 346 [FAA applies to arbitration clauses in contracts involving interstate commerce or where the arbitration clause provides the FAA shall apply]; Apolinar Decl., in passim; Clark Decl., in passim; Munoz Decl., in passim; see also Apolinar Decl. at Ex. A, art. 1.) <u>Existence of arbitration agreements.</u> Both defendants have met their burden to demonstrate the existence of an agreement to arbitrate the controversy. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 (<i>Engalla</i>) [burden]; <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-833 (<i>Ramirez</i>) [three-step burden shifting process]; <i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51 (<i>Garcia</i>) [same]; <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 [same].) HB Healthcare has met its first-step, prima facie burden to demonstrate the existence of an agreement to arbitrate the controversy by producing a copy of the Sea Cliff SNF Agreement between HB Healthcare and plaintiff, signed and dated by plaintiff on 6/15/23. (See Apolinar Decl. at Ex. A.) The Sea Cliff SNF Agreement covers “any action for injury or death arising from negligence, intentional tort and/or statutory causes of action,” which includes all of plaintiff’s claims in this case. (See <i>id.</i> at Ex. A, art. 2; see also FAC, in passim.) Sandpiper has also met its first-step burden by producing a copy of the Sea Cliff RCFE Agreement between Sandpiper and plaintiff, signed and dated by plaintiff on 8/1/23. (See Clark Decl. at Ex. B.) The Sea Cliff RCFE Agreement covers “any action other than a claim for medical malpractice brought by or on behalf of the Resident and in any way relating to the Resident’s stay at the Facility,” including, inter alia, “claims pertaining to ... alleged violations of the [Elder Abuse Act]....” (Clark Decl. at Ex. B, art. 2.) This encompasses plaintiff’s claims in this action, as all of plaintiff’s claims arise from the defendants’ neglect/abuse and failure to provide adequate care/treatment as a care custodian. (See <i>Holland v. Silverscreen Healthcare, Inc.</i> (2025) 18 Cal.5th 364, 380-381 [“a failure of staff to attend to, monitor, or assist a resident in obtaining appropriate medical care generally falls on the custodial side of the line because such omissions involve ‘not ... the <i>undertaking</i> of medical services, but ... the failure to <i>provide</i> medical care’ ”; “allegations that a skilled nursing

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		facility failed to provide 'nutrition, hydration, and medication' and left the patient "in his bed, unattended and unassisted, for excessively long periods," whether due to inadequate staffing or otherwise, "causing [injury] from starvation, dehydration, and sepsis state[s] a claim of custodial neglect, rather than professional negligence"; <i>Hearden v. Windsor Redding Care Center, LLC</i> (2024) 103 Cal.App.5th 1010, 1018-1019 ["Elder neglect does not refer to substandard performance of medical services but rather the failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations"]; see also FAC ¶¶ 3-4, 19-49, 51-55.) This shifts the burden to plaintiff to present evidence of a factual dispute as to the existence of the arbitration agreements. (<i>Garcia, supra</i>, 102 Cal.App.5th at pp. 51-52.) Plaintiff does not deny signing the subject agreements and has not submitted any evidence disputing their authenticity; he admits he signed them. (See Cacak Decl. ¶¶ 3, 5-6.) As such, the three-step burden shifting analysis stops here, and defendants have met their burden to demonstrate the existence of an agreement to arbitrate the controversy. (See <i>Ramirez, supra</i>, 102 Cal.App.5th at p. 837.) <u>Defense to enforcement, unconscionability.</u> Plaintiff has demonstrated a defense to enforcement based on unconscionability. (See <i>Engalla, supra</i>, 15 Cal.4th at p. 972 [burden]; <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 125 (<i>OTO</i>) [unconscionability]; <i>Sanchez v. Superior Court</i> (2025) 108 Cal.App.5th 615, 625 (<i>Sanchez</i>) [unconscionability, procedural and substantive].) <u>Procedural unconscionability.</u> Plaintiff has demonstrated that both arbitration agreements are procedurally unconscionable because defendants presented the agreements to him as a part of a stack of admission documents he was led to believe he needed to sign to stay at each respective facility, and further misrepresented the content/legal ramifications of the agreements. (See Cacak Decl. ¶¶ 3-6.) The arbitration agreements are also procedurally unconscionable in that they fail to identify the rules that may potentially govern the arbitration in two respects. First, the agreements are confusingly drafted as to whether the FAA and/or CAA may apply. Both agreements tend to suggest the FAA may apply, without actually providing that it does (see Apolinar Decl. at Ex. A, art. 3; Clark Decl. at Ex. B, art. 3),

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		and then state that the discovery procedures of the CAA shall apply, but then cite to the entirety of the CAA and/or California law, suggesting that the CAA may govern instead. (Apolinar Decl. at Ex. A, arts. 1 [“any dispute as to medical malpractice ... will be determined by submission to arbitration as provided by California law”], 7 [“Code of Civil Procedure Section 1280 et seq.”]; Clark Decl. at Ex. B, art. 7 [“Code of Civil Procedure Section 1280 et seq.”].) Just as defendants have mistakenly moved to compel pursuant to the FAA without showing it applies (see Mtn. P&As at p. 3), a resident cannot reasonably be expected to predict or determine whether the FAA or CAA (or certain select portions thereof) will govern the arbitration agreement and/or arbitration proceeding from these terms. This creates uncertainty and operates as a surprise as to the terms of arbitration and the conditions under which arbitration may be compelled. (See <i>Lane v. Francis Capital Management LLC</i> (2014) 224 Cal.App.4th 676, 690 [the failure to attach incorporated arbitration rules is not “by itself” sufficient to sustain a finding of procedural unconscionability, but it “could be a factor supporting a finding of procedural unconscionability where the failure would result in surprise to the party opposing arbitration”]; accord, <i>Dougherty v. Roseville Heritage Partners</i> (2020) 47 Cal.App.5th 93, 204.) Second, the agreements also do not identify a specific arbitral forum or specific provider’s rules. By failing to specify any arbitral forum at all, plaintiff would have had no way of determining the applicable arbitral fees and costs, leaving this crucial term a surprise. (See <i>Sanchez, supra</i>, 108 Cal.App.5th at pp. 627-628; see also Apolinar Decl. at Ex. A, art. 7 [each party to bear its own expenses incurred during the arbitration process]; Clark Decl. at Ex. B, art. 7 [same].) All in all, the foregoing establishes at least a moderate degree of procedural unconscionability, and this is so regardless of the fact that the agreements may indicate that they are optional and include an opt-out provision, particularly given the manner in which the agreements were presented to plaintiff. (See Cacak Decl. ¶¶ 3-6.) “Even where an arbitration provision allows a party to opt out, there may be procedural unconscionability if there is not ‘an authentic informed choice’ to make that decision.” (<i>Haydon v. Elegance at Dublin</i> (2023) 97 Cal.App.5th 1280, 1288.) <u>Substantive unconscionability.</u> Both arbitration agreements also have a high degree of substantive unconscionability. First, they provide that by executing the agreement, the resident is

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		“waiv[ing] his/her right to bring a lawsuit against the Facility for violation of the Resident Bill of Rights, contained in Title 22 of the California Code of Regulations Section 72527.” (Apolinar Decl. at Ex. A, art. 3; Clark Decl. at Ex. B, art. 3.) The Resident’s Bill of Rights prohibits an arbitration agreement by a skilled nursing facility or other residential care facility from requiring a resident to waive his ability to sue in court for a violation of its provisions, and renders such a clause void as a matter of public policy. (See Health & Saf. Code, §§ 1430, subd. (b)(1)(C), 1599.81, subd. (d); <i>Theresa D. v. MBK Senior Living LLC</i> (2021) 73 Cal.App.5th 18, 29 [Resident’s Bill of Rights prohibits admissions contract or related arbitration agreement “from requiring the resident to waive ‘benefits or rights to which he or she is entitled under [its provisions] or provided by federal or other state law or regulation’ ... including the right to a jury trial”].) Defendants attempt to avoid this outcome by contending that these anti-waiver statutes are preempted by the FAA, but this argument fails because as discussed above, nothing shows the FAA applies. State law rules that are preempted by the FAA are nevertheless good law in cases that do not involve the FAA. (<i>Villalobos v. Maersk, Inc.</i> (2025) 114 Cal.App.5th 1170, 1196-1197.) Next, both agreements also require each side to bear its own expenses incurred during the arbitration process, which effectively waives plaintiff’s right to recover the attorney fees and costs that he may be entitled to under the Elder Abuse Act. (Apolinar Decl. at Ex. A, art. 7; Clark Decl. at Ex. B, art. 7.) “Where a provision in an arbitration agreement seeks to waive such rights, ... the provision is contrary to public policy” and unenforceable. (<i>Bickel v. Sunrise Assisted Living</i> (2012) 206 Cal.App.4th 1, 12-13 [waiver in residency agreement of the plaintiff’s statutory remedies under the Elder Abuse Act unenforceable as contrary to public policy]; accord, <i>Dougherty v. Roseville Heritage Partners, supra</i>, 47 Cal.App.5th at pp. 101, 106 [“an arbitration agreement ‘may not limit statutorily imposed remedies such as ... attorney fees’”; the court “will not enforce an arbitration agreement that functions as an advance waiver of a claimant’s statutory rights”].) Finally, both agreements are one-sided and lack mutuality. HB Healthcare’s arbitration agreement (the Sea Cliff SNF Agreement) applies to any medical malpractice dispute, and “any action for injury or death arising from negligence, intentional tort and/or statutory causes of action and covers any claims for wrongful death, loss of consortium, or other claims deriving from or related to alleged medical

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		malpractice.” (Apolinar Decl. at Ex. A, arts. 1-2.) Sandpiper’s arbitration agreement (the Sea Cliff RCFE Agreement) requires arbitration of “any action other than a claim for medical malpractice brought by or on behalf of the Resident and in any way relating to the Resident’s stay at the Facility,” including, inter alia, “claims pertaining to the admission agreement and the interpretation, construction, performance, and enforcement of that agreement; the Facility itself; alleged violations of the [Elder Abuse Act] and the Unfair Competition Act [<i>sic</i>]; and claims seeking an award of punitive damages or attorney fees.” (Clark Decl. at Ex. B, art. 2.) At the same time, both agreements carve out “[c]laims relating to disputes over payments owed to the Facility or the payment of the Resident’s ‘share of cost’ required by the Medi-Cal program, if applicable....” (Apolinar Decl. at Ex. A, art. 5; Clark Decl. at Ex. B, art. 5.) This effectively requires plaintiff to arbitrate the types of claims he is most likely to bring against the facility, while allowing the facility to bring the types of claims it is most likely to bring against plaintiff in court. These provisions “[are] clearly ‘one-sided,’ benefitting only the Facility, and thus renders the agreement itself substantively unconscionable.” (<i>Lopez v. Bartlett Care Center, LLC</i> (2019) 39 Cal.App.5th 311, 322.) <u>Severability.</u> “If an arbitration agreement contains provisions that are unconscionable, courts may (1) refuse to enforce the agreement or (2) sever the offending provisions and enforce the remainder of the agreement.” (<i>Dougherty v. Roseville Heritage Partners, supra</i>, 47 Cal.App.5th at p. 101.) Given the degree of procedural unconscionability and multiple substantive unconscionable terms in each of the subject arbitration agreements, the court finds the agreements are so permeated with unconscionability that they should not be enforced. (See <i>id.</i> at p. 107.) It is clear from the language of the agreements that they were meant to impose arbitration not simply as an alternative to litigation, but as an inferior forum that works to defendants’ advantage, as well as an advanced waiver of plaintiff’s statutory rights under the Elder Abuse Act and the Resident’s Bill of Rights. (See <i>id.</i> at pp. 101, 106-107; Health & Saf. Code, §§ 1430, subd. (b)(1)(C), 1599.81, subd. (d).) The case management conference is continued to February 22, 2027 at 9:00 a.m. in Department C28. Plaintiff shall serve the First Amended Complaint on all non-served defendants within 60 days. Moving party shall give notice of this ruling.

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55.	Watman v. Providence Mission Hospital 2025-01489022	Cross-defendants Estate of Lorraine Virginia McKay and Aron McKay, administrator of the Estate of Lorraine Virginia McKay's motion for determination of good faith settlement is DENIED without prejudice. C.C.P. 877.6; <i>Tech-Bilt, Inc. v. Woodward-Clyde & Associates</i> (1985) 38 Cal. 3d 488. In determining whether a settlement is in good faith, the court considers: ... a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. [Citation.] Finally, practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement. "[A] defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be." [Citation.] (<i>Tech-Bilt v. Woodward-Clyde, supra</i> at 499 [internal citations omitted].) "The party asserting the lack of good faith, who has the burden of proof on that issue [citation] should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute." (<i>Id.</i> at 499-500.) Based on the court's analysis, the settling cross-defendants have failed to demonstrate that the settlement is in good faith when considering (1) the financial condition of the estate; and (2) the lack of competent evidence addressing the proportionate liability among the parties. (This second issue appears to be a function of the early stage of the litigation.) If the proportional liability among the parties becomes clearer, and the financial conditions of the settlement or the estate change, the settling parties may again apply for determination of good faith settlement. Flashparking's objections to the declaration of Richard K. Kim are SUSTAINED as to 1 and 2 and OVERRULED as to the